

UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK

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BRANDON BOYCE,

Plaintiff,

SECOND AMENDED COMPLAINT  
11 CV 1734 (BMC)(MDG)

- against -

THE CITY OF NEW YORK, GARY VANZANTEN,  
ANTHONY MONTEFUSCO, and FRANCISCO  
DELOSSANTOS, employees of the New York City  
Police Department,

Defendants.

**Jury Trial Demanded**

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Brandon Boyce, by his attorney, Matthew Flamm, alleges the following  
upon information and belief as his Second Amended Complaint:

Nature of the Action

1. This civil rights action arises from defendants' December 7, 2010 arrest of and assault on Brandon Boyce. Plaintiff seeks declaratory relief pursuant to 28 U.S.C. §2201 as well as compensatory and punitive damages for violation of his civil rights under 42 U.S.C. §1983.

Jurisdiction and Venue

2. This action arises under the United States Constitution and 42 U.S.C. §1983. This Court has subject matter jurisdiction pursuant to 28 U.S.C. §1331 and §1343(3). Plaintiff asserts jurisdiction over the City of New York under 28 U.S.C. §1367. Plaintiff requests that this Court exercise pendent jurisdiction over those state law claims arising out of the same common nucleus of operative facts as do plaintiff's federal claims.

3. Under 28 U.S.C. §1391(b) and (c), venue is proper in the Eastern District of New York because defendant City of New York resides in that judicial District.

Parties

4. Plaintiff BRANDON BOYCE is a citizen of the United States of America residing in the State and City of New York, County of Kings.

5. Defendants CITY OF NEW YORK is a Municipal Corporation within New York State. Pursuant to §431 of its Charter, the City of New York has established and maintains the New York City Department of Police as a constituent department or agency. At all times relevant, the City of New York employed the Police personnel involved in the incident underlying this lawsuit.

6. Defendants GARY VANZANTEN, ANTHONY MONTEFUSCO and FRANCISCO DELOSSANTOS were at all times relevant duly appointed and acting Detectives employed by the New York City Police Department and assigned to the Brooklyn North Narcotics Division.

7. At all times relevant, defendants Vanzanten, Montefusco and Delossantos (the "individual defendants") were acting under color of state law.

8. The individual defendants involved in the incidents underlying this lawsuit were, at all times relevant, agents, servants and employees acting within the scope of their employment by defendant City of New York.

Notice of Claim

9. On or about February 3, 2011, and within ninety days after the claims arose, plaintiff filed a Notice of Claim upon defendant the City of New York,

by delivering copies thereof to the person designated by law as a person to whom such claims may be served.

10. The Notice of Claim was in writing and was sworn to by the plaintiff, and contained the name and post office address of the plaintiff.

11. The Notice of Claim set out the nature of the claims, the time when, the place where and manner by which claims arose, and the damage and injuries claimed to have been sustained.

12. More than thirty days have elapsed since the claim was presented and the City of New York has neglected and failed to adjust the claims.

13. This action was commenced within one year and ninety days after the happening of the events upon which the claims are based.

Facts Underlying  
Plaintiff's Claims for Relief

14. On December 7, 2010 at approximately 5:00 p.m., individual defendants unlawfully assaulted and arrested Brandon Boyce in his home and then falsely charged Mr. Boyce with obstructing governmental administration and resisting arrest.

15. The individual defendants entered Boyce's home without a warrant to arrest Boyce's sister, Samantha Boyce.

16. Individual defendants falsely claimed to the District Attorney and to the Criminal Court that Mr. Boyce stood in the doorway of his home and did not allow Vanzanten, Montefusco and Doe inside of the home.

17. Individual defendants falsely claimed to the District Attorney and to the Criminal Court that that, when Vanzanten and other police officers went to handcuff Samantha, Mr. Boyce attempted to pull his sister away from them.

18. Individual defendants falsely claimed to the District Attorney and to the Criminal Court that Boyce flailed his arms and refused to place his hands behind his back when Vanzanten went to handcuff Boyce.

19. One or more of the individual defendants and other New York City Police personnel conferred and decided to charge Mr. Boyce, and defendant Vanzanten provided false sworn statements in support of the prosecution.

20. Mr. Boyce was arraigned under Kings County Criminal Court Docket No. 2010KN096502 on the false charges of obstructing governmental administration (PL §195.05, a misdemeanor punishable by up to one year in jail) and resisting arrest (PL §205.30, a misdemeanor punishable by up to one year in jail).

21. Plaintiff was released on his own recognizance and ordered, under threat of arrest, to appear in Court on January 26, 2011.

22. Brandon Boyce appeared in Criminal Court on that day and the charges were adjourned in contemplation of dismissal on the motion of the District Attorney and immediately sealed.

23. The individual defendants, despite having a reasonable opportunity to do so, took no action to prevent, end, or truthfully report the misconduct to which Mr. Boyce was subjected.

24. In addition to physical injuries and pain, defendants' acts and omissions caused Mr. Boyce to suffer emotional upset, shock, fright and

deprivation of his constitutional rights, among other injuries. Mr. Boyce suffered the debasement of being publicly brutalized, unlawfully arrested and subjected to the indignities and privations of New York City's arrest-to-arraignment process.

25. Mr. Boyce, for approximately two and one-half years prior to his arrest, worked steadily as a sign language interpreter through Geneva Worldwide, an agency which contracts with the New York City Administration for Children's Services. Because of the arrest, plaintiff had little or no work since from December 7, 2010.

26. The individual defendants, at all times relevant, and in arresting and imprisoning plaintiff, in publicly-parading him in his underwear, in providing false evidence to the District Attorney and to a Judge of the Criminal Court of the City of New York, acted intentionally, willfully, maliciously, negligently, and with reckless disregard for and deliberate indifference to plaintiff's rights and well-being.

FIRST CLAIM FOR RELIEF FOR  
VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM  
UNREASONABLE SEARCHES AND SEIZURES UNDER THE FOURTH AND  
FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

27. Plaintiff repeats the allegations of paragraphs 1-26 as though fully stated herein.

28. By the actions described above, Mr. Boyce was deprived of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to his right to be free and secure in his person and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

29. As a consequence thereof, Brandon Boyce has been injured.

SECOND CLAIM FOR RELIEF FOR FALSE IMPRISONMENT

30. Plaintiff repeats the allegations of paragraphs 1-26 as though fully stated herein.

31. By reason of the foregoing, plaintiff was intentionally detained and confined without privilege or probable cause to believe a crime had been committed. Plaintiff was aware of and did not consent to the confinement. Plaintiff was thereby falsely arrested and imprisoned.

32. As a consequence thereof, Brandon Boyce has been injured.

THIRD CLAIM FOR RELIEF FOR  
VIOLATING PLAINTIFF'S RIGHT TO BE FREE  
FROM UNREASONABLE FORCE UNDER THE FOURTH AND  
FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

33. Plaintiff repeats the allegations of paragraphs 1-26 above as though fully stated herein.

34. By the actions described above, Mr. Boyce was deprived of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to his right to be free from excessive and unreasonable force.

35. As a consequence thereof, Brandon Boyce has been injured.

FOURTH CLAIM FOR RELIEF FOR ASSAULT

36. Plaintiff repeats the allegations of paragraphs 1-26 as though fully stated herein.

37. By the actions described above, plaintiff was intentionally placed in apprehension of imminent harmful and offensive contact.

38. As a consequence thereof, Brandon Boyce has been injured.

FIFTH CLAIM FOR RELIEF FOR BATTERY

39. Plaintiff repeats the allegations of paragraphs 1-26 as though fully stated herein.

40. By the actions described above, plaintiff was intentionally touched in a harmful and offensive manner.

41. As a consequence thereof, Brandon Boyce has been injured.

SIXTH CLAIM FOR RELIEF FOR FAILURE TO INTERVENE  
TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

42. Plaintiff repeats the allegations of paragraphs 1-26 as though fully stated herein.

43. The individual defendants, and each of them, failed to intervene to prevent, end, or truthfully report the unlawful conduct to which Mr. Boyce was subjected, despite having a reasonable opportunity to do so.

44. As a consequence thereof, Brandon Boyce has been injured.

SEVENTH CLAIM FOR RELIEF FOR NEGLIGENCE

45. Plaintiff repeats the allegations of paragraphs 1-26 as though fully stated herein.

46. The acts complained of herein resulted from defendant City of New York, through its agents, servants and employees, breaching its duty properly to

instruct, supervise, monitor and control its Police personnel, including instructing, supervising, monitoring and controlling the individual defendants herein.

47. Defendant City's enforcement of laws without adequate training, supervision, monitoring or control directly resulted in the illegal use of force on and seizure and arrest of Brandon Boyce and others, and allowed the individual defendants and the others involved in this incident to believe they could with impunity present false evidence and testimony.

48. By reason of the foregoing, the defendant City of New York through its agents, servants, and employees, failed and refused to use such care in the performance of their duties as a reasonably prudent law enforcement provider would have used under similar circumstances.

49. As a consequence thereof, Brandon Boyce has been injured.

Request for Relief

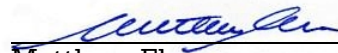
WHEREFORE, plaintiff respectfully requests that judgment be entered as follows:

- (A) Declaratory relief as follows:
  - 1. A declaration that plaintiff's right to be free from unreasonable seizures under the Fourth and Fourteenth Amendments of the United States Constitution was violated;
  - 2. A declaration that plaintiff's right to be free from unreasonable force under the Fourth and Fourteenth Amendments of the United States Constitution was violated;
- (B) Compensatory damages in an amount to be fixed at trial;



- (C) By reason of the wanton, willful and malicious character of the conduct complained of herein, punitive damages from the individual defendants in an amount to be fixed at trial;
- (D) An award to plaintiff of the costs and disbursements herein;
- (E) An award of attorney's fees under 42 U.S.C. §1988; and
- (F) Such other and further relief as this Court may deem just and proper.

Dated: June 30, 2011  
Brooklyn, New York

  
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